RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 3 -

ANNEX

MARPOL ANNEX VI

REGULATIONS FOR THE PREVENTION OF AIR POLLUTION FROM SHIPS

Chapter 1 General

Regulation 1
Application

The provisions of this Annex shall apply to all ships, except where expressly provided otherwise.

Regulation 2
Definitions

1 For the purpose of this Annex:

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Chapter 1 General

Regulation 1
Application

The provisions of this Annex shall apply to all ships, except where expressly provided otherwise.

Regulation 2
Definitions

1 For the purpose of this Annex:

.1 Annex means Annex VI to the International Convention for the Prevention of Pollution from Ships, 1973 (MARPOL), as modified by the Protocol of 1978 relating thereto, and as modified by the Protocol of 1997, as amended by the Organization, provided that such amendments are adopted and brought into force in accordance with the provisions of article 16 of the present Convention.

.2 A similar stage of construction means the stage at which:

.1 construction identifiable with a specific ship begins; and

.2 assembly of that ship has commenced comprising at least 50 tonnes or one per cent of the estimated mass of all structural material, whichever is less.

.3 Anniversary date means the day and the month of each year that will correspond to the date of expiry of the International Air Pollution Prevention Certificate.

.4 Audit means a systematic, independent and documented process for

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.3 Anniversary date means the day and the month of each year that will correspond to the date of expiry of the International Air Pollution Prevention Certificate.

.4 Audit means a systematic, independent and documented process for obtaining audit evidence and evaluating it objectively to determine the extent to which audit criteria are fulfilled.

.5 Audit Scheme means the IMO Member State Audit Scheme established by the Organization and taking into account the guidelines developed by the Organization.

.6 Audit Standard means the Code for Implementation.

.7 Auxiliary control device means a system, function or control strategy installed on a marine diesel engine that is used to protect the engine and/or its ancillary equipment against operating conditions that could result in damage or failure, or that is used to facilitate the starting of the engine. An auxiliary control device may also be a strategy or measure that has been satisfactorily demonstrated not to be a defeat device.

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not to be a defeat device.

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.8 Code for Implementation means the IMO Instruments Implementation Code (III Code) adopted by the Organization by resolution A.1070(28).

.9 Continuous feeding is defined as the process whereby waste is fed into a combustion chamber without human assistance while the incinerator is in normal operating conditions with the combustion chamber operative temperature between 850°C and 1,200°C.

.10 Defeat device means a device that measures, senses or responds to operating variables (e.g. engine speed, temperature, intake pressure or any

other parameter) for the purpose of activating, modulating, delaying or deactivating the operation of any component or the function of the emission control system such that the effectiveness of the emission control system is reduced under conditions encountered during normal operation, unless the use of such a device is substantially included in the applied emission certification

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control system such that the effectiveness of the emission control system is reduced under conditions encountered during normal operation, unless the use of such a device is substantially included in the applied emission certification test procedures.

.11 Electronic Record Book means a device or system, approved by the Administration, used to electronically record the required entries for discharges, transfers and other operations as required under this Annex in lieu of a hard copy record book.

.12 Emission means any release of substances, subject to control by this Annex, from ships into the atmosphere or sea.

.13 Emission control area means an area where the adoption of special mandatory measures for emissions from ships is required to prevent, reduce and control air pollution from NO x or SOx and particulate matter or all three types of emissions and their attendant adverse impacts on human health and the environment. Emission control areas shall include those listed in, or designated under, regulations 13 and 14 of this Annex.

.14 Fuel oil means any fuel delivered to and intended for combustion purposes for

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the environment. Emission control areas shall include those listed in, or designated under, regulations 13 and 14 of this Annex.

.14 Fuel oil means any fuel delivered to and intended for combustion purposes for propulsion or operation on board a ship, including gas, distillate and residual fuels.

.15 Gross tonnage means the gross tonnage calculated in accordance with the tonnage measurement regulations contained in Annex I to the International Convention on Tonnage Measurements of Ships, 1969, or any successor Convention.

.16 In-use sample means a sample of fuel oil in use on a ship.

.17 Installations in relation to regulation 12 of this Annex means the installation of systems, equipment, including portable fire-extinguishing units, insulation, or other material on a ship, but excludes the repair or recharge of previously installed systems, equipment, insulation or other material, or the recharge of portable fire-extinguishing units.

.18 Installed means a marine diesel engine that is or is intended to be fitted on a ship, including a portable auxiliary marine diesel engine, only if its fuelling,

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portable fire-extinguishing units.

.18 Installed means a marine diesel engine that is or is intended to be fitted on a ship, including a portable auxiliary marine diesel engine, only if its fuelling, cooling or exhaust system is an integral part of the ship. A fuelling system is considered integral to the ship only if it is permanently affixed to the ship. This definition includes a marine diesel engine that is used to supplement or augment the installed power capacity of the ship and is intended to be an integral part of the ship.

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.19 Irrational emission control strategy means any strategy or measure that, when the ship is operated under normal conditions of use, reduces the effectiveness